

Smt. Rajesh Saini v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 December 2025 · WRIT - C No. 40265 of 2025 · **Writ disposed of with liberty to object under Clause 6.5; recovery stayed.**

HEADNOTE

Connection and consumer name having been restored during the writ, a disputed demand of Rs. 79,694 remained. The Court relegated the petitioners to object under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, stayed recovery until that decision, and directed payment of current bills.

FACTUAL SUMMARY

The petitioners, holding Account No. 1378963771 at Plot No. SH-8A/2, Sector 141, Noida, filed this writ seeking a mandamus to restore their electricity connection and certiorari to quash an order of respondent no. 4 removing petitioner no. 2's name as consumer. During pendency, the petitioners' names as consumers were restored and electricity supply resumed. Thereafter a demand of Rs. 79,694 was raised, which the petitioners dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

Where the connection and consumer name have been restored during the writ and only a disputed bill remains, the consumer is to prefer an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, who shall decide it after notice and hearing; recovery of the disputed amount stays until that decision, while current bills must continue to be paid. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND OF RS. 79,694

left to the Executive Engineer on a Clause 6.5 objection ¶ 3-4